

ASCII MASTER FLOW – PANEL 1/9: The four-dimensional federal relations map

CENTRE-STATE AND INTER-STATE RELATIONS

- +-- LEGISLATIVE: Articles 245-255 + Seventh Schedule
- +-- ADMINISTRATIVE: Articles 256-263
- +-- FINANCIAL: Articles 264-293 + GST Articles 246A / 269A / 279A
- +-- INTER-STATE / ECONOMIC: Articles 261-263 and 301-307

OPERATING QUESTION

Who may act -> through which constitutional route -> with what check -> with what remedy?

FEDERALISM IS NOT ONE LIST

legal competence + implementation control + fiscal capacity + bargaining institutions.

ASCII MASTER FLOW – PANEL 2/9: Legislative competence before conflict

ARTICLE 245: territorial reach

- +-- Parliament: whole or any part of India; extra-territorial operation protected
- +-- State legislature: whole or any part of the State; territorial nexus applies

ARTICLE 246 + SEVENTH SCHEDULE

Union List 100 -> Parliament

State List 61 -> States, subject to constitutional exceptions

Concurrent List 52 -> both; Article 254 resolves repugnancy

SPECIAL RULES

Article 246A -> GST competence

Article 248 + Union Entry 97 -> residuary power with Parliament.

ASCII MASTER FLOW – PANEL 3/9: Parliament's routes into the State field

STATE LIST IS PRIMARY, NOT ABSOLUTE

- |
- +-- Article 249 -> Rajya Sabha national-interest resolution
- +-- Article 250 -> National Emergency; temporary extension after it ends
- +-- Article 252 -> two or more States request; other States may adopt
- +-- Article 253 -> treaty / international obligation implementation
- +-- Article 356 -> Parliament legislates for the affected State
- +-- Article 246(4) -> territories not included in a State

EXAM CONTROL

State trigger, national trigger, duration and amendment/repeal control differ by route.

ASCII MASTER FLOW – PANEL 4/9: Doctrines, repugnancy and State-law control

FIRST RECONCILE COMPETENCE

pith and substance -> true nature

harmonious construction -> preserve both entries

incidental encroachment -> tolerated when substance is competent

colourable legislation -> what cannot be done directly cannot be disguised

THEN TEST ARTICLE 254

Concurrent field + direct conflict -> Union law ordinarily prevails

reserved State law + Presidential assent -> operates in that State

Parliament may later override

ASSENT CONTROL

prior sanction != reservation; Articles 200-201 remain distinct procedures.

ASCII MASTER FLOW – PANEL 5/9: Administrative directions, delegation and common services

STATE EXECUTIVE DUTY

Article 256 -> ensure compliance with parliamentary law

Article 257 -> do not impede Union executive power; directions in stated fields

|

+-- Article 365: non-compliance may supply material

+-- Article 356: still requires separate constitutional satisfaction and review

COOPERATIVE ADMINISTRATION

Articles 258 / 258A -> mutual entrustment of functions

Article 312 -> Rajya Sabha route for All-India Services

CBI -> DSPE Act consent architecture; State consent and federal litigation remain bounded.

ASCII MASTER FLOW – PANEL 6/9: Fiscal federalism from tax power to borrowing

NO TAX WITHOUT AUTHORITY OF LAW: ARTICLE 265

- +-- assigned / distributed taxes: Articles 268-270
- +-- surcharge for Union purposes: Article 271
- +-- grants: Articles 273, 275 and 282
- +-- Finance Commission: Article 280
- +-- borrowing: Articles 292-293

GST LAYER

Articles 246A + 269A + 279A -> shared tax field + destination rule + Council

CURRENT CONTROL

Sixteenth Finance Commission award 2026-31; report tabled in Parliament.

Fiscal autonomy depends on predictable devolution, not State List words alone.

ASCII MASTER FLOW – PANEL 7/9: Intergovernmental forums and river-water adjudication

ARTICLE 262 INTER-STATE COUNCIL

inquiry + discussion + recommendation; constitutional and recommendatory

ZONAL COUNCILS

States Reorganisation Act, 1956; regional consultation; statutory, not constitutional

North Eastern Council -> separate statutory regional body

ARTICLE 262 WATER DISPUTES

negotiation -> statutory tribunal -> decision/publication -> implementation

Parliament may exclude court jurisdiction through law

CURRENT LIMIT

The 2019 permanent-tribunal Bill has not become law; do not invent one tribunal.

ASCII MASTER FLOW – PANEL 8/9: Sarkaria, Punchhi and the modes of federalism

COOPERATIVE -> consultation and joint implementation

COMPETITIVE -> innovation, investment and policy comparison

BARGAINING -> negotiated grants, GST and political accommodation

COERCIVE -> conditional finance, directions or unilateral central leverage

SARKARIA

strong Union within cooperation; Article 356 last resort; neutral Governor; active ISC

PUNCHHI

localised emergency debate; clearer Governor practice; consultation and dispute prevention

REFORM TEST

regular institutions + shared data + reasoned decisions + fiscal transparency.

ASCI MASTER FLOW – PANEL 9/9: Prelims controls, PYQ routes and answer synthesis

PRELIMS FIREWALL

Article 254 -> Concurrent repugnancy, not every Union-State disagreement

Article 365 -> possible consequence, not automatic President's Rule

GST -> Article 246A special field, not a general Concurrent List tax entry

Zonal Councils -> statutory; Inter-State Council -> constitutional

PYQ ROUTES

2019 supremacy/harmony | 2020 centralisation | 2024 relation reform | 2025 fiscal federalism

MAINS SPINE

define dimension -> cite Article/institution -> explain mechanism -> evidence

-> State/Union counterpoint -> commission reform -> cooperative, reviewable conclusion.